

**FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges**

TOYOTA DE PUERTO RICO, CORP.
Complainant

Docket No. 19-02

v.

PUERTO RICO PORTS AUTHORITY;
CROWLEY PUERTO RICO SERVICES;
AND OCEANIC GENERAL AGENCY INC.
Respondents

JOINT STATUS REPORT

TO THE HONORABLE COMMISSION:

Pursuant to the Order issued by this Honorable Commission on October 28, 2020, the Parties report as follows:

**A. Status of *Dantzler, Inc. v. Empresas Berrios Inventory & Operations, Inc.*,
958 F.3d 38 (1st Cir. May 1, 2020)**

On September 2, 2020, the United States Court of Appeals for the First Circuit denied the appellees' Petition for Rehearing. See, Ex. I. It is the Parties understanding that the appellees in said case have not yet decided whether to file a Petition for Certiorari before the Supreme Court. Counsel for PRPA has communicated with attorneys Elwood Stevens and Alberto Castañer, counsel of record for the *Dantzler* case appellees, to inquire about their intentions in this regard. They have until January 29, 2021 to file a notice of intent to appeal.

B. Potential Settlement

On August 9, 2019, after having produced to PRPA the documents supporting the monetary amounts claimed, Toyota extended an initial settlement demand. Toyota reiterated said demand on September 20, 2019. Further, since the Order dated October 28, 2020 instructs the parties “to discuss the status of this proceeding and any potential for settlement”, Toyota reopened settlement talks last October 29, 2020. PRPA has yet to respond to these overtures.

Having received the Court of Appeal’s ruling in the *Dantzler* case and the recent news that the *Dantzler* Plaintiffs are pondering the possibility of filing for Certiorari Review, the undersigned counsel will re-consult the possibility of settlement with PRPA.

WHEREFORE, the Parties respectfully request that this Honorable Commission take notice of the above and deem them in compliance with the October 28 Order.

An original and five copies of this Joint Motion will be filed with the Office of the Secretary.

RESPECTFULLY SUBMITTED.

In San Juan, Puerto Rico, this 9th of November, 2020

(Signatures in next page.)

REICHARD & ESCALERA LLC

s/Sylvia M. Arizmendi

Sylvia M. Arizmendi

s/Alana M. Vizcarrondo

Alana Vizcarrondo

Attorneys for Toyota de Puerto Rico, Inc.

MCS Plaza, Suite 1000

255 Ave. Ponce de Leon

Hato Rey, PR 00918

Tel: (787) 777-8888/Fax: (787) 765-4225

arizmendis@reichardescalera.com

vizcarrondo@reichardescalera.com

TREBILCOCK LLC

s/Thomas Trebilcock

Thomas Trebilcock Horam

Attorney for PRPA

Metro Office Park

BDG 11 Suite 105^a

Guaynabo, PR 00968

Tel. 787-399-1969

ttrebilcock@trebilcockrovira.com

CERTIFICATE OF SERVICE

We hereby certify that on this same date we served a copy of the foregoing document upon each and all parties of record through their respective attorneys by electronic mailing to the following addresses:

Thomas Trebilcock, Esq.- ttrebilcock@trebilcockrovira.com

Sylvia M. Arizmendi- arizmendis@reichardescalera.com

Alana Vizcarrondo, Esq.- vizcarrondo@reichardescalera.com

Exhibit I

United States Court of Appeals For the First Circuit

No. 18-2087

DANTZLER, INC.; NORTHWESTERN SELECTA, INC.; ALBERIC COLON AUTO SALES, INC.; ALBERIC COLON DODGE CHRYSLER JEEP, INC.; ALBERIC COLON FORD, INC.; ALBERIC COLON MITSUBISHI, INC.; SACHS CHEMICAL, INC.; MAYS CHEMICAL COMPANY OF PUERTO RICO, INC.; MADERAS ALPHA, INC.; CELTA EXPORT CORPORATION; COUGAR PLASTICS CORPORATION; CARIBBEAN PRODUCE EXCHANGE, LLC; MADEARTE FURNITURE IMPORTS & DISTRIBUTORS, INC.; MADERAS 3C, INC.; MARJOR & SONS, INC.; M.M. FASHION & DESIGN, INC.; PAPELERA DEL PLATA, INC.; THE PAPERHOUSE CORP.; PLAVICA, INC.; EMPRESAS BERRIOS, INC.; JOSE SANTIAGO, INC.; CORREA TIRE DISTRIBUTOR, INC.; EUGENIO SERAFIN, INC., d/b/a Est Hardware

Plaintiffs - Appellees

EMPRESAS BERRIOS INVENTORY AND OPERATIONS, INC.; CORREA TIRE

Plaintiffs

v.

S2 SERVICES PUERTO RICO, LLC; RAPISCAN SYSTEMS, INC.

Defendants - Appellants

PUERTO RICO PORTS AUTHORITY; JOHN DOE; JANE DOE; ABC CORP.; XYZ CORP.; UNKNOWN INSURANCE COMPANIES

Defendants

No. 18-2089

DANTZLER, INC.; NORTHWESTERN SELECTA, INC.; ALBERIC COLON AUTO SALES, INC.; ALBERIC COLON DODGE CHRYSLER JEEP, INC.; ALBERIC COLON FORD, INC.; ALBERIC COLON MITSUBISHI, INC.; SACHS CHEMICAL, INC.; MAYS CHEMICAL COMPANY OF PUERTO RICO, INC.; MADERAS ALPHA, INC.; CELTA EXPORT CORPORATION; COUGAR PLASTICS CORPORATION; CARIBBEAN PRODUCE EXCHANGE, LLC; MADEARTE FURNITURE IMPORTS & DISTRIBUTORS, INC.; MADERAS 3C, INC.; MARJOR & SONS, INC.; M.M. FASHION & DESIGN, INC.;

PAPELERA DEL PLATA, INC.; PAPERHOUSE CORP.; PLAVICA, INC.; EMPRESAS
BERRIOS, INC.; JOSE SANTIAGO, INC.; CORREA TIRE DISTRIBUTOR, INC.;
EUGENIO SERAFIN, INC., d/b/a Est Hardware

Plaintiffs - Appellees

EMPRESAS BERRIOS INVENTORY AND OPERATIONS, INC.; CORREA TIRE

Plaintiffs

v.

PUERTO RICO PORTS AUTHORITY

Defendant - Appellant

S2 SERVICES PUERTO RICO, LLC; RAPISCAN SYSTEMS, INC.; JOHN DOE;
JANE DOE; ABC CORP.; XYZ CORP.; UNKNOWN INSURANCE COMPANIES

Defendants

Before

Howard, Chief Judge,
Torruella, Lynch, Dyk,* Thompson, Kayatta and Barron,
Circuit Judges.

ORDER OF COURT

Entered: September 2, 2020

The petition for rehearing having been denied by the panel of judges who decided the case, and the petition for rehearing en banc having been submitted to the active judges of this court and a majority of the judges not having voted that the case be heard en banc, it is ordered that the petition for rehearing and the petition for rehearing en banc be denied.

By the Court:

Maria R. Hamilton, Clerk

* Of the Federal Circuit, sitting by designation.

cc:

Ian Carvajal-Zarabozo

Manuel Sosa-Baez

Luis N. Saldana-Roman

Alberto J. Castaner-Padro III

Deborah C. Waters

Elwood C. Stevens Jr.

Eyck O. Lugo-Rivera

Maria Teresa Figueroa-Colon

Mark D. Campbell

Matthew W. Light

Thomas J. Trebilcock-Horan

Heriberto Lopez-Guzman